



AN ACT REQUIRING THE DEPARTMENT OF CORRECTIONS TO OFFER A MONTANA CORRECTIONAL EDUCATION PROGRAM FOR INMATES; REQUIRING THE CORRECTIONAL EDUCATION PROGRAM TO PROVIDE HIGH SCHOOL EQUIVALENCY AND ADULT BASIC EDUCATION PROGRAMS; PROVIDING QUALIFICATIONS FOR AN INSTRUCTOR OF THE HIGH SCHOOL EQUIVALENCY AND ADULT BASIC EDUCATION PROGRAMS; REQUIRING THE DEPARTMENT OF CORRECTIONS TO ADOPT CERTAIN POLICIES; AND PROVIDING AN EFFECTIVE DATE.

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Montana correctional education program -- instructor qualifications. (1) There is a Montana correctional education program within the department of corrections. The Montana correctional education program shall offer a program for inmates to participate in opportunities in the state prison to further their education, including but not limited to programs to attain a high school equivalency diploma and to participate in adult basic education.

(2) To be eligible to be an instructor for a high school equivalency diploma program or an adult basic education program in the state prison, a person:

- (a) must be 18 years of age or older;
- (b) must be of good moral character; and
- (c) shall provide proof that the person has at least one of the following qualifications:
 - (i) completion of an associate degree in any field;
 - (ii) completion of a bachelor's degree in any field;
 - (iii) a teaching certificate issued by another state; or
 - (iv) prior teaching experience, including prior military training and experience pursuant to 37-1-145.

(3) The department of corrections may not require that an instructor hold a Montana teacher or

specialist certificate issued by the superintendent of public instruction.

(4) The department of corrections may adopt policies to determine which inmates are eligible to participate in the Montana correctional education program.

Section 2. Codification instruction. [Section 1] is intended to be codified as an integral part of Title 53, chapter 30, part 1, and the provisions of Title 53, chapter 30, part 1, apply to [section 1].

Section 3. Effective date. [This act] is effective July 1, 2025.

- END -

I hereby certify that the within bill,
HB 595, originated in the House.

Chief Clerk of the House

Speaker of the House

Signed this _____ day
of _____, 2025.

President of the Senate

Signed this _____ day
of _____, 2025.

HOUSE BILL NO. 595

INTRODUCED BY F. NAVE, K. SEEKINS-CROWE

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